5.
Liberation Movements and Elections

The political settlements in Zimbabwe, Namibia, and South Africa cast victory in democratic elections as the principal *rite de passage* before power was to be transferred from the old regimes to the new. The rules of the game differed in all three cases. However, the thrust of the arrangements was that transitional elections were required not merely to elect new governments but to confirm popular acceptance of the new constitutional orders. Furthermore, whilst enabling newly elected governments to secure access to office, these elections would provide the opportunity for winning parties to make a political accommodation with both key constituencies of the old regime and other political competitors. Yet in the age of post-Cold War, 'third wave' democracy, it was necessary to do more than win one just election. Rather, it was necessary for NLMs, if they were to retain power with legitimacy, to perpetually renew their mandates via repeat victories in successive democratic elections.

This requirement was a potential paradox, for while liberation movements might lay claim to embodying 'the nation', post-transitional elections opened the possibility to demonstrations that, in electoral terms, they did not; in turn, loss of elections should, in constitutional terms, mean loss of power. Yet if for NLMs the logic of history dictated that they represented the nation, then electoral defeat would constitute a reversal of history, even while democratic experience worldwide demonstrates that it is quite customary for even highly popular governments to lose support over time. After all, the whole thrust of liberal democracy is to provide for competitive elections and peaceful alternations in power.

There was also another factor, for incumbent governments regularly embody sectional or class interests even while claiming to represent the general will. The implication was that NLMs might transform into instruments of class or sectional rather than popular rule. In short, the different NLMs were to face the perpetual challenge of proving that they embodied both the national and popular wills simultaneously. To the extent that they failed to achieve this, the prospect was that the state would be thrust into crisis if nationalism chose to trump democracy.

This chapter will proceed by examining the basis for the victories in transitional elections obtained by ZANU-PF, SWAPO, and the ANC. While the latter pair have managed to establish their 'dominance' by demonstrating the continuing support of the voting electorate, ZANU-PF has not, and to retain power has had to resort to systematic electoral fraud and political violence. This would seem to suggest a fundamental difference between ZANU-PF and its fellow NLMs; yet if, as argued in this book, NLMs are members of the same family, do apparently very different electoral outcomes obscure important similarities? To answer this question, this chapter will compare how electoral systems have been managed; how resources for electoral purposes have been allocated; the extent

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to which the different NLMs have been prepared to resort to political and/or military coercion to secure desired results; and how the need to secure control over the state has transformed the liberation movements into electoral machines.

Winning transitional elections

Whether or not they were effectively imposed by external actors or forged by political adversaries themselves, the electoral arrangements adopted were all fundamental components of the political transitions. It is now history that all three NLMs secured sufficiently generous victories to establish their right to rule, ZANU-PF securing 63 per cent of the popular vote in Zimbabwe in 1980, SWAPO obtaining 57.3 per cent in Namibia in 1989, and the ANC triumphing with nearly 63 per cent in South Africa in 1994.

The victories secured by the three parties were all obtained in conditions which were proclaimed by the electoral authorities and electoral monitoring bodies to have been, in the given circumstances, 'free and fair'. While all three liberation movements secured substantial majorities, all three transitional elections recorded substantial votes for minority parties, whether rival nationalist or formerly white ruling ones. Thus whilst all three election victories were impressive, none were sufficiently comprehensive to endorse any claim that the NLM concerned represented the 'nation' if the 'people' and the 'nation' were truly one.

Initially, however, the focus of all three NLMs was to consolidate their hold on power by increasing their majorities in (and between) subsequent elections, and in so doing, to establish their political hegemony. As with any governments, this depended in considerable part upon increasing their appeal to voters through their performance in power. Yet, notably in Zimbabwe, it was also to be facilitated by changes made to the electoral and political systems, sometimes through blatant manipulation of the constitution.

At this point it is helpful to begin by examining the experiences of Namibia and South Africa before turning to the more turbulent developments in Zimbabwe.

SWAPO: establishing electoral dominance in Namibia

The negotiations process which preceded Namibia's transition to independence was largely conducted without the involvement of Namibians themselves. Its principal actors were the US, which was intent on securing withdrawal of Cuban troops from Angola; Cuba, whose enthusiasm for remaining in southern Africa was eroded by the loss of interest in the region by its sponsor, the Soviet Union; and South Africa, Namibia's *de facto* colonial power.

By mid-1988, agreement had been reached regarding the essential principles for peace in the region, including the implementation of the UN Security Council Resolution 435 of 1978 which would set Namibia's independence process in motion. The first day of April 1989 was confirmed as the date for implementation of Resolution 435 whereby South Africa would withdraw all

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but 1,500 of its military forces from Namibia; the UN would guarantee the independence process and oversee free elections; and Cuba would begin a withdrawal from Angola. From mid-1988, powers were progressively handed over to the UN, whose activities were supervised by its special envoy, Martti Ahhtisari, with day-to-day administration taken over by a Transitional Government which was largely representative of the DTA and various ethnic parties. In May 1988 the Transitional Government had invited Sam Nujoma to participate in the drafting of a constitution acceptable to all, but the SWAPO leader turned this down as it would have run contrary to the procedure outlined in UN 435 which dictated prior election of a Constituent Assembly, and thereafter elections for a government. Subsequently, once a final agreement had been signed between Angola, Cuba, and South Africa on 22 December 1988, the authority of the Transitional Agreement was gradually reduced until it dissolved itself on 28 February 1989. Although South Africa retained an active presence, authority passed steadily over to the UN.[1]

About 4,560 troops, nearly 1,000 police, 760 administrative staff and 650 electoral personnel drawn from some 90 countries were deployed by the United Nations Transition Assistance Group (UNTAG), enjoying wide powers and responsibilities. These included overseeing the withdrawal of South African troops and the demobilization of the South West African Territorial Force. These tasks were not accomplished without difficulty. For instance, there were credible complaints that South African forces actively encouraged anti-SWAPO propaganda in the Ovambo-dominated north and were intimidating war-weary villagers. However, the most controversy was caused by the UN's backing of a South African military repulse of the crossing over the Angolan border into Namibia of some 1,500 SWAPO guerrillas, the UN claiming its own troops were not in place to undertake this role themselves and were engaged for peacekeeping rather than combat operations. Motives for the incursion were not clear, but may have included a determination to claim that, following years of warfare, SWAPO had managed to establish a base in Namibia. Suffice it to say, the foray was widely deemed adventurist, leading to the massacre of some hundreds of its combatants before SWAPO was induced to withdraw its troops back across the border. Thereafter, while SWAPO began to rally support in Africa against an alleged unholy alliance between the UN and South Africa, the UN found that, broadly, South Africa adhered to the demands of the transitional programme, although it was rumoured that Pretoria would be prepared to confront SWAPO militarily if the latter, failing to obtain a majority, opted to return to armed struggle.[2]

SWAPO had wanted to retain the FPTP electoral system which hitherto had been in use in South West Africa for ethnic and national elections, probably calculating that this would amplify the size of its expected majority. However, the 'liberation' election, when it came in November 1989, was conducted under a national list PR system, without a minimum threshold of votes required to obtain a seat. This system had been proposed by South Africa as far back as 1982 and was accepted by the UN as providing for the widest possible representation. As far as Pretoria was concerned, the danger was that SWAPO would

[1] *ACR 1988–89*, B625–35.
[2] *ACR 1989–90*, B560–68.

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obtain a two-thirds majority, which according to the agreement reached would enable it to impose a constitution upon the Assembly (a dangerous precedent for potential developments in South Africa itself). In the event, the election produced what many regarded as an optimal result, with SWAPO winning 41 seats out of 80, enabling it to establish its legitimacy as a majority party yet not winning enough seats (48) to write a new constitution on its own. The opposition, headed by the DTA, while regarded as tainted by their ethnic past nonetheless secured enough seats to sit as a convincing opposition and to serve as a serious counterbalance in the constitution-making process.[3]

Following its victory, SWAPO readily accepted the need to work with minority parties, notably the DTA, in drawing up a constitution and became 'remarkably compliant with the insistence on democratic procedures'.[4] Against prior expectation it accepted constitutional principles adopted by the UN in 1982 which provided for a unitary and democratic state, an independent judiciary, a bill of fundamental rights, universal elections, and the separation of powers of the three branches of government. After a first meeting on 21 November 1989, the Constituent Assembly completed its work on 9 February 1990, its final draft being passed unanimously and earning plaudits for being one of the most enlightened constitutions to be found anywhere in the world. This set the stage for the withdrawal of the last remaining South African troops and Namibia's proceeding to independence on 21 March 1990 under Sam Nujoma who had been elected by the Assembly as President. Following the election the Constituent Assembly transformed itself into the National Assembly.[5]

During the decades that have followed SWAPO has substantially increased its parliamentary majority and can be said to have established itself as a dominant party. This is recorded by the results of the three post-transitional elections for both the National Assembly and for the President, an elective presidency (limited to two terms from 1994) having been introduced under the constitution. The results of the four elections hitherto for the National Assembly have been as shown in Table 5.1 on page 101.

Nujoma secured election as President with 74.46 per cent of the votes in 1994 and 76.84 per cent in 1999, while Hifikepunye Pohamba, his successor as SWAPO's presidential candidate, obtained 76.45 per cent in 2004 and 75.25 per cent in 2009. In turn, this electoral dominance has been reinforced, first by the right of the President, from 1994 to nominate six persons to the National Assembly; second, from 1992, by successive SWAPO victories in elections for some 13 Regional Councils and over 40 local authorities – the first elected every six years using FPTP, the latter according to party list PR; and third, by the election by the Regional Councils of two of their members to a National Council, the upper chamber of parliament, which although having very limited powers of review, has served as a handy sphere of patronage for the ruling party.

Namibian elections have been regarded as reflecting the will of the Namibian electorate, with diverse (African, regional and other) election observer missions reporting that the election processes have been largely free and fair. However, in recent times there has been increasing criticism regarding, for instance, the

[3] ACE Electoral Knowledge Network, undated, 'Namibia: National list in southern Africa', http://aceproject.org/ace-en/topics/es/esy/esy_na

[4] *ACR 1988–89*, B574.

[5] *ACR 1989–90*, B560–68.

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Table 5.1 Namibian National Assembly Elections 1989–2009[6]

Party	Valid Votes	% Valid Votes	Elected Seats
		1989 Election	
SWAPO	384,567	57.32	41
DTA	191,532	28.55	21
UDF	37,874	5.64	4
Other	56,857	8.5	6
Total	670,830		72
		1994 Election	
SWAPO	361,809	72.72	53
DTA	101,748	20.45	15
UDF	13,309	2.68	2
Other	12,779	2.57	1
Total	489,645		72
		1999 Election	
SWAPO	408,174	76.15	55
DTA	50,824	9.48	7
COD	53,289	10.05	7
UDF	15,685	2.93	2
Other	8,064	1.5	1
Total	536,036		72
		2004 Election	
SWAP0	620,609	75.83	55
COD	59,464	7.23	5
DTA	42,070	5.14	4
NUDO	34,814	4.25	3
UDF	30,355	3.71	3
Other	31,127	3.81	72
Total	818,439		
		2009 Election	
SWAPO	602,580	74.29	54
RDP	90,556	11.16	8
DTA	25,393	3.13	2
NUDO	24,422	3.01	2
Other	57,616	7.11	6
Total	800,567		72

strong bias of the state broadcaster, the Namibian Broadcasting Corporation (NBC) in favour of SWAPO. Furthermore, opposition parties and civil society organizations have regularly filed complaints about various procedural irregularities and the performance of the Electoral Commission for Namibia (ECN). Indeed, following the formation of the Congress of Democrats (COD), estab-

[6] *ACR 1989–90*, B573; Graham Hopwood (2007), *Guide to Namibian Politics*, Windhoek: Namibia Institute for Democracy; Directorate of Elections for 2009, http://www.ecn.na/Pages/home.aspx

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lished by Ben Ulenga, a former senior figure within SWAPO, who objected to plans to amend the constitution to enable Nujoma to serve a third term as President, the climate surrounding the elections in 1999 was grim, and numerous instances of intimidation of opposition parties by SWAPO were reported. Additionally, inconsistencies in the electoral procedures, discrepancies in the voters' list, and the casting and counting of votes, as well as an undue delay in announcing the results, provoked a legal intervention questioning the result of the parliamentary vote. The High Court ordered a recount, resulting in only minor differences from the original results and leaving the distribution of parliamentary seats unchanged. There was no appeal in court, but a judgement by electoral observers that there was considerable room for improvement in the way elections were regulated, managed, observed, and monitored.[7] Subsequently, in 2009, there were again court interventions regarding alleged irregularities, but more particularly complaints were made about denial of the right to campaign freely, notably by the Rally for Democracy and Progress (RDP). This new party had been founded by two former members of cabinet, both political heavyweights from the first-struggle generation in exile, who had lost out in a SWAPO internal power struggle over the succession of Sam Nujoma as head of state. Given the new party's affinity to parts of SWAPO's regional stronghold in the north, the RDP was considered to be a serious challenger to SWAPO's dominance, resulting in an aggressive response from both higher party levels as well as from local activists, contributing to an atmosphere of repression hitherto unknown and raising worries about the tolerance of any idea of defeat by the ruling party.[8]

For all such concerns, SWAPO's electoral dominance remains founded upon the broad consent of the majority of Namibian voters. Nonetheless, there are numerous criticisms that the ruling party has used state power to consolidate a cycle of party dominance which is deeply inimical to any party daring to challenge its political hegemony. Part of the responsibility lies with opposition parties themselves, which have remained divided along a host of lines, and have hitherto offered no ideological alternative to the ruling party.[9] However, the reluctance of civil society to speak upon on matters 'appertaining to maintenance and preservation of moral, ethical and social values and standards' has also contributed (see Chapter 7).[10]

The ANC: establishing electoral dominance in South Africa

President De Klerk's lifting of the bans on the ANC, SACP, PAC, and other parties and movements on 2 February 1990 led to a remarkable process of negotia-

[7] Phanuel Kaapama (2005), 'Pre-conditions for free and fair elections: A Namibian country study', in Jeanette Minnie (ed.), *Outside the Ballot Box: Preconditions for Elections in Southern Africa 2004/05*, Windhoek: Media Institute for Southern Africa.

[8] On the events of 1999, see Oda van Cranenburgh (2006),'Namibia: Consensus institutions and majoritarian politics', *Democratization*, 13: 4, 584–604.

[9] Justine Hunter (ed.) (2005), *Spot the Difference: Namibia's Political Parties Compared*, Windhoek: Namibia Institute for Democracy.

[10] Harold Pupkewitz (1996), 'Perceptions and performance of government and opposition in Namibia', in *Building Democracy: Perceptions and Performance of Government and Opposition in Namibia*, Windhoek: Namibia Institute for Democracy and Konrad Adenauer Stiftung.

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tion between contending parties culminating in the democratic elections of 28–29 April 1994. The adoption of an 'interim constitution' in late 1993 (which embodied key principles which would have to provide the basis for a final constitution to be adopted by a post-transition election parliament acting as a Constituent Assembly) reflected a broad consensus around liberal democratic principles (free elections, a Bill of Rights, the independence of the judiciary, and so on). This was a product of the defensive powers retained by the government (control of the state, military, and policing apparatus plus significant support among demographic minorities, notably whites) in contrast to the offensive powers enjoyed by the ANC (ability to contest state control in both township and rural areas based upon majority support among the mass of the population).

Electorally, the outcome was similar to that which occurred in Namibia. Adoption of a national list PR system (rather than FPTP which the ANC had originally preferred, as had SWAPO) provided for maximum representation of all shades of opinion, although unlike in Namibia, the transitional election also involved elections (via list PR) for the nine new provinces. Again, as in Namibia, the outcome of the election was regarded by substantial minorities in South Africa as peculiarly beneficent, for while the ANC secured an indisputable majority, it fell short of the two-thirds majority which, in terms of the interim constitution, would have enabled it to drive the finalization of the constitution-making process without the support of other political parties. However, whereas in Namibia SWAPO has been able to amplify the level of its political support significantly amongst voters during the course of successive post-transitional elections, the ANC has proved less able to make substantial further inroads into the electorate and has faced consistently higher levels of opposition, both nationally and regionally, even though the opposition parties have remained very fragmented, with potential for their unity constrained by race, ethnicity, style, ideology, regional affiliation, and party leaderships' ambition (see Table 5.2 on page 104).

As in Namibia, there have been various allegations regarding the supposed partiality of the Independent Electoral Commission (IEC) for the ANC, yet no substantial complaints have been upheld. Overall, the body is regarded as having maintained a commendable level of independence which it has combined with notable efficiency,[11] in spite of some serious problems in 1994. Notably, there is strong reason to believe that the KwaZulu-Natal provincial election result was manipulated to provide a narrow margin of victory for the IFP (Inkatha Freedom Party) to secure its participation in a settlement to which it had stridently objected. In spite of various irregularities elsewhere at other times, elections have been declared by international and domestic electoral observers and media as free and fair, and there is no reason to believe that the different results distort the views of 'the people'.

Unlike in Namibia since 1994, the South African President is elected by parliament rather than directly by the people. Perhaps because this has been no bar to a considerable centralization of power under the presidency (notably during the era of Thabo Mbeki), there has been no concerted move by the ANC

[11] Judith February (2009), 'The electoral system and electoral administration', in Roger Southall and John Daniel (eds), *Zunami! The 2009 South African Elections*, Johannesburg: Jacana Media, 47–64.

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Table 5.2 South African National Assembly Elections 1994–2009[12]

Party	Valid Votes	% Valid Votes	Elected Seats
		1994 Election	
ANC	12,237,655	62.65	252
NP	3,983,690	20.39	82
IFP	2,058,294	10.54	43
DP	338,426	1.73	7
Other	915,433	4.68	16
Total	19,533,498		400
		1999 Election	
ANC	10,601,330	66.35	266
DA	1,527,337	9.56	38
IFP	1,088,664	8.58	34
NNP	1,098,215	6.87	28
Others	1,378,783	8.62	34
Total	15,977,142		400
		2004 Election	
ANC	10,880,915	69.69	279
DA	1,931,201	12.37	50
IFP	1,088,664	6.97	28
NNP	257,824	1.65	7
Others	1,454,067	9.3	36
Total	15,612,671		400
		2009 Election	
ANC	11,650,748	65.90	264
DA	2,945,829	16.66	67
COPE	1,311,027	7.42	30
IFP	804,260	4.55	18
Others	968,865	5.49	21
Total	17,680,729		400

to change the system. Meanwhile, ANC dominance has been largely replicated in the upper chamber of parliament (initially a Senate, subsequently the National Chamber of Provinces, both elected by provincial legislative assemblies) and rather more by its continuous hold over seven or more provinces. The principal outliers have been the Western Cape (where whites, Coloureds, and Indians taken together outnumber Africans) and KwaZulu-Natal, where the ANC has had to confront the predominantly Zulu ethnically based IFP of Chief Mangosuthu Buthelezi.

In the Western Cape, although the ANC was enabled to take control of the province in coalition with the renamed *New* NP in 2002 (following a controversial process of floor-crossing by members of political parties) and to confirm this via a coalition victory in 2004, rampant divisions within the provincial

[12] John Daniel and Roger Southall (2009), 'The national and provincial electoral outcome: Continuity with change', in Southall and Daniel (eds), op. cit., 215–31.

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ANC along largely African versus Coloured lines led to its loss of the province to an invigorated DA (Democratic Alliance) in 2009.[13]

In KwaZulu-Natal the IFP was enabled to assume leadership of the provincial government from 1994 (when, officially, it obtained a bare 50.5 per cent popular majority) through to 2004. However, the level of support for the ANC (32 per cent in 1994, improving to 39 per cent in 1999) was such that it was forced to rule in uneasy coalition with the ANC, until in 2004, the ANC became the leading party with 48 per cent of the vote, with that of the IFP down to 37 per cent. Subsequently, the IFP's remaining grip on the province was shattered by a 63 per cent victory by the ANC in 2009, this generally ascribed to the elevation of Jacob Zuma, a Zulu, to the leadership. The party was now enabled to indulge in its own particular brand of ethnic mobilization and its erosion of the IFP's traditional base in rural areas.[14] Meanwhile, although facing varying levels of opposition, the ANC has established virtually unchallengeable dominance in every other province. This has been reflected at the local government level where the ANC has been predominant since the first democratic local elections in 2001 (conducted according to a mixed system of party lists elected by PR and wards elected by FPTP). In contrast to trends in other provinces, the party lost control of the Cape Town City Council in 2006.

ANC dominance was initially contained by the requirement of the interim constitution that the post-transitional government should be one of national unity (replicated at provincial level) wherein parties gaining 10 per cent or more of the vote could choose to be represented. This resulted initially in a GNU which united the formerly ruling NP and IFP under Nelson Mandela's leadership and was symbolized by former President De Klerk serving as a co-Deputy President alongside Thabo Mbeki. However, since the withdrawal of the NNP from the coalition following the promulgation of the new constitution in 1996 (and De Klerk's objections to what he deemed the ANC's marginalization of the NNP in cabinet),[15] the ANC has enjoyed total control of the government. However, it has continued to include of a handful of ministers from minority parties, notably the IFP, until the latter withdrew after the 2009 election.

As in Namibia, the ANC has found national list PR much to its liking. Not only does it translate its support into proportional majorities, but it has also facilitated the manipulation of party lists so as to ensure that the party's legislative representation include members of demographic and political minorities thus formally expressing its commitment to non-racialism and gender equality. While this is praiseworthy, critics have complained that the elimination of constituencies (used before 1994), has embodied the loss of accountability of MPs and Members of Provincial Legislatures (MPLs). Rather than being responsible to local voters, they are responsible to their party superiors, not least because under the constitution, parties are able to move ('redeploy') their representatives in and out of legislatures at will. Thus, despite survey evidence that a substantial majority of voters would prefer to move to a Mixed Member

[13] Zwelethu Jolobe (2009), 'The Democratic Alliance: Consolidating the official opposition', in Southall and Daniel (eds), op. cit., 131–46.

[14] Anthony Butler (2009), 'The ANC's national campaign of 2009: *Siyanqoba!*' in Southall and Daniel (eds), op. cit. 85–113.

[15] F.W. de Klerk (1998), *The Last Trek: A New Beginning*, London and Basingstoke: Macmillan, Ch.33.

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Proportional electoral system (MMP) whereby MPs would be elected from regionally demarcated multiple member constituencies, the ANC has consistently chosen to override the majority recommendation of an Electoral Task Team, established in terms of the constitution in 2002, to review the electoral system. The team favoured a move to MMP, but the ANC argued that the national list system provided for maximum representativeness of a diverse society.[16]

In contrast, the ANC proved rather less concerned with the ideal of representativeness when, in 2002, the government opportunistically passed legislation to allow for crossing the floor in national and provincial legislatures, a practice hitherto barred by the constitution. The move had its origins in a crisis in the ranks of the opposition. The NNP, having moved out of the government of national unity, had sought to arrest its very evident decline by merging with the DP (Democratic Party) to form the DA, only for its leading elements to become uncomfortable in opposition. Offered a lifeline in the form of a return to collaboration with the ANC, the NNP under its new leader Marthinus van Schalkwyk took the bait and returned to coalition with the ANC in the Western Cape, enabling an ANC-NNP coalition to wrest control of both the provincial and Cape Town municipal governments from the DA.[17] Subsequently, floor-crossing – albeit allowed only during two annual windows – worked overwhelmingly in favour of the ANC, as members of small parties sought to feather their nest by ensconcing themselves in the ruling party. Indeed, so blatant was the process, and 'cross-stitutes' so cynically regarded by the public, that the legislative provision was reversed in 2007 (the NNP having folded itself completely into the ANC in 2005).[18]

By this time, the ANC may have reckoned that it was wise to restore barriers to the consolidation of the opposition under the leadership of the DA, which had steadily improved its standing via its able performance in parliament. ANC dominance has been considerably enhanced by the fragmentation of the opposition: after 1999 there have been never less than thirteen parties represented in parliament. However, there has been a consistent trend towards the strengthening of the DA as major force in parliament for holding the ANC accountable (up from the DP's 7 seats in 1994 to 67 in 2009). Even so, it is a much repeated point that the racial profile of the DA (overwhelmingly white, albeit incorporating increasing black support) inhibits its potential for growth and rules it out as a serious contender for power at the national level. Furthermore, as is frequently stated, the principal threat to ANC hegemony comes from within the Tripartite Alliance. As it happened, internal rebellion (in the form of the Congress of the People [COPE], based on supporters alienated by Mbeki's displacement as President) failed signally to deliver on its promise as a non-racial alternative to the ruling party in the 2009 election.[19] However, many

[16] Robert Mattes and Roger Southall (2004), 'Popular attitudes towards the South African electoral system', *Democratization*, 11: 1, 51–76.

[17] Roger Southall (2004), 'The state of party politics: Struggles within the Tripartite Alliance and the decline of the opposition', in John Daniel, Adam Habib and Roger Southall (eds), *State of the Nation: South Africa 2003–2004*, Cape Town: HSRC Press, 53–77.

[18] February, op. cit.

[19] Susan Booysen (2011), *The African National Congress and the Regeneration of Political Power*, Johannesburg: Wits University Press, Ch. 9.

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consider that the possibility of COSATU (or key segments of it) coalescing with forces of civil society to form a party of the left constitutes the major potential threat to continuing ANC electoral dominance (see Chapter 7).

ZANU-PF: claiming hegemony, imposing domination

The ANC and SWAPO enjoy 'hegemony' obtained through popular consent, even if there are worrying signs that the latter party, in particular, is becoming increasingly intolerant. In contrast, while initially enjoying the support of the majority of voters, ZANU-PF has since 2000 experienced a series of defeats which, despite its deployment of massive intimidation to induce people to vote for it, unambiguously indicate that, if electoral processes had been free, fair, and honoured, it would now be out of power. Thus although ZANU-PF has perpetually claimed hegemony, in the sense of embodying the 'true interest' of the Zimbabwean people, it has never enjoyed 'party dominance' in the sense that it has relied upon coercion rather than consent to secure 're-election'. In Zimbabwe, 'dominance' has been imposed.

The consolidation of power

Between 1980 and 2009, Zimbabwe experienced seven elections for the National Assembly, two for the Senate, two for the presidency (inclusive of a run-off in the second instance) and a constitutional referendum in 2000. These are usefully analysed according to the pre- and post-constitutional referendum periods.

The transitional election was to be administered by the same National Election Directorate which had been created for the internal settlement election in 1979, albeit under ultimate British supervision. Furthermore, because of insufficiency of time to prepare, given the return of guerrillas (to assembly points) and the large number of displaced persons as a result of the war, there was no electoral register. The right to vote was awarded to those who were eighteen or over and who were citizens or permanent residents. Finally, another decision saw the retention of the party list system for the common roll election for practical reasons, with the 80 common roll seats being proportionally allocated to the eight electoral districts used in the previous election according to the 1979 voting patterns, this eliminating the need for demarcation and reducing electoral bureaucracy.[20]

Following Lancaster House, ZANU-PF had chosen to break from ZAPU and to contest the elections separately. With Smith's RF capturing all twenty white seats, the common roll result was as shown in Table 5.3 on page 108.

Mugabe became Prime Minister, and during this early period, earned much favourable credit by actively seeking reconciliation with whites, and by appointing Nkomo and other members of ZAPU to his cabinet.

Several factors explain the victory for ZANU-PF. First, ZANLA guerrillas had a presence throughout two-thirds of the country, and whether the inhabitants of those areas were ZANU-PF enthusiasts or not, voters were tired of the war

[20] Colin Baker (1982), 'Conducting the elections in Zimbabwe 1980', *Public Administration and Development*, 2, 45–58.

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Table 5.3 Zimbabwe National Assembly Election 1980[21]

Party	Valid Votes	% Valid Votes	Seats
ZANU-PF	1,668,992	62.99	57
PF-ZAPU	638,879	24.11	20
UANC	219,307	8.28	3
Others	123,351	4.62	0
Total	2,649,529		80

and believed that only Mugabe could bring peace.[22] Guerrillas were meant to be kept within seventeen assembly points for the elections, but Mugabe substituted large numbers of untrained young men in their stead, keeping his superior troops outside the camps to prepare for emergencies. Some were held back in Mozambique, but many others were infiltrated into the TTLs to 'encourage' voters.[23] Second, Mugabe earned kudos by appearing to be the most unpopular of all the competing leaders with Ian Smith, South Africa, and the West. Third, Muzorewa (and Ndabaningi Sithole, whose rump ZANU had taken only 2 per cent of the vote) had been discredited by the internal settlement. Fourth, once ethnicity had become a political issue in the 1970s nationalist movement, ZAPU had become a minority party, overwhelmingly rooted in Matabeleland, while ZANU-PF carried the majority Shona-speaking areas. Finally, although there were numerous allegations about the use of intimidation by all the contestants, it was particularly difficult for other parties to campaign in former ZANLA areas.[24] While the British Governor, Lord Soames, had insisted that no party would be able to repudiate the result on the grounds that he had taken inadequate steps to curb intimidation, Mugabe had threatened to resume the war if ZANU-PF failed to win the election.[25] This instrumental attitude towards elections was to become a feature of ZANU-PF's approach to democracy henceforward.

[21] Masipula Sithole (1986), 'The general elections: 1979–1985', in Ibbo Mandaza (ed.), *Zimbabwe: The Political Economy of Transition 1980–1985*, Dakar: Codesria; Harare: Jongwe Press, 75–98.

[22] It is important here to refer again to Norma Kriger's critique of analyses of the relationship between peasants and ZANU-PF from scholars such as Andre Astrow, Lionel Cliffe and Terence Ranger, arguing for the radicalization of the peasants due to the oppressions of settler colonialism and discounting ZANU-PF's use of coercion during the election campaign. Kriger, in contrast, argues that peasants were 'reluctant supporters of the guerrillas', only turning to them during the war under duress, but voted for ZANU-PF because they hoped that if they did so, 'it would compensate them for the sacrifices – the loss of resources, labour time, and lives – forced upon them by the ZANU guerrillas…peasants in Shona areas where ZANU guerrillas had operated, had no such claim against other parties. In Ndebele-areas exposed to ZANU guerrillas, the guerrillas' insensitive efforts to impose Shona cultural nationalism were an early signal to expect nothing from ZANU.' Norma Kriger (1992), *Zimbabwe's Guerrilla War: Peasant Voices*, Cambridge: Cambridge University Press, 165.

[23] Paul Moorcroft (2012), *Mugabe's War Machine*, Johannesburg and Cape Town: Jonathan Ball Publishers, 85.

[24] Sithole, op. cit., 86.

[25] Baker, op. cit., 55.

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The following three elections for the National Assembly, matched by that for the presidency, were used to consolidate ZANU-PF's supremacy. As required by the independence constitution, the common roll elections were from 1985 to be conducted upon a constituency-based plurality basis (i.e., FPTP). Whilst the delimitation and registration exercises encountered numerous practical difficulties in the lead-up to the 1985 elections, their conduct was generally regarded as 'beyond reproach'.[26] The independence constitution provided for the appointment of an Electoral Supervisory Commission (ESC), comprising five notables, whose function was to overview the registration of voters, the election of MPs, the drafting of electoral legislation, and to make reports as appropriate to the President. The actual running of elections was to be conducted by an Election Directorate (ED, with a Chairman appointed by the President), the Registrar-General and other members appointed by the Ministries of Justice, Legal and Parliamentary Affairs. However, by 1990, concerns were already being raised regarding the neutrality of the electoral authorities. Jonathan Moyo, whose entry into politics on ZANU-PF's behalf in a later era was to become highly controversial, was at this time one of the country's leading political scientists, and his thorough study of the elections of that year noted, *inter alia*, that the independence of the ESC appeared to have been worn down by the 'seeming omnipotence of ZANU-PF rule'.[27] The ED was composed, amongst others, of permanent secretaries of relevant ministries, who served at the pleasure of the President. Further, following an increase in the number of representatives to parliament from 100 to 120, there were complaints that constituency boundaries were manipulated to favour ZANU-PF.[28] Yet the key political factors that shaped the outcome of these elections were beyond the immediate electoral arena.

The first development was the crackdown by the army upon ZAPU militants in Matabeleland following the discovery of arms caches in Nkomo strongholds in 1982. The army was itself undergoing a difficult process of integration between former Rhodesian troops and ZANLA and ZIPRA guerrillas. Although denying that ZAPU was working in league with South African intelligence (deemed responsible for the destruction of much of the air force at its Gwelo base earlier in 1982), Nkomo and three other members of ZAPU were dismissed from the cabinet. The violence wreaked upon Matabeleland by the military (headed by the Fifth Brigade who were trained by North Korean advisers) was to account for around 20,000 deaths and instil an atmosphere of fear amongst ZAPU supporters in Matabeleland. The Gukurahundi ('the rain that sweeps away the chaff') thereby intensified political regionalism:

> In the eyes of the Ndebele public, what was portrayed as a mission to stamp out dissidents became an anti-Ndebele campaign that deliberately identified Joshua Nkomo, PF-ZAPU, ex-ZIPRA combatants and every Ndebele-speaking person with the political rebels. The Fifth Brigade unit was almost entirely Shona, and justified its violence in political and ethnic terms. For many, this represented a Shona political crusade against the Ndbele.[29]

[26] Sithole, op. cit., 89.

[27] Jonathan Moyo (1992), *Voting for Democracy: Electoral Politics in Zimbabwe*, Harare: University of Zimbabwe Press, 52.

[28] Ibid., 48–49.

[29] James Muzondidye (2009), 'From buoyancy to crisis', in Brian Raftopoulos and Alois Mlambo (eds), *Becoming Zimbabwe: A History from the Pre-Colonial Period to 2008*, Harare: Weaver Press, 185.

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Inevitably, it provided reinforcement of the popular basis for later expressions of Ndebele ethnic opposition to ZANU-PF domination. However, its most immediate outcome was a reduced vote for ZAPU and a larger majority for ZANU-PF amongst the common roll seats in the 1985 election.

Meanwhile, the retention of reserved seats for whites in parliament aggravated ZANU-PF antipathy. In large part, this could be ascribed to Ian Smith and the RF. In deference to the new era, the RF had changed its name to the Conservative Alliance of Zimbabwe (CAZ). Skilled in parliamentary procedure and highly knowledgeable about the economy, the RF/CAZ constantly embarrassed the government, prompting Mugabe to issue dire warnings about the dangerous consequences of white opposition to black rule. While this prompted a breakaway in early 1982 by a number of RF MPs and resulted in the formation of a more conciliatory alternative, namely the Independent Zimbabwe Group (IZG), the outcome of the 1985 white roll election saw a strong recovery of Smith's position, resulting in the CAZ winning fifteen seats. Mugabe took this as a willful rejection of the friendship which the government had extended to them. With ZANU-PF having won 64 out of the 80 seats, Mugabe moved swiftly to abolish the reserved seats, securing the support of sufficient opposition MPs to obtain the two-thirds majority required under the constitution to pass a constitutional amendment.

The crackdown on ZAPU dissidence had been accompanied by Mugabe stepping up a campaign for a one-party state which was associated with a drive for Marxist-Leninist socialism. Despite post-independence assurances concerning acceptance of diversity, Mugabe became increasingly critical of multi-party democracy, claiming that the Lancaster House agreement fettered the rights of the majority.[30] However, one-partyism remained controversial even within ZANU-PF, and he was unable to avoid a promise made to parliament in August 1981 that it would never be imposed by force and would require a referendum. For his part, Nkomo strongly opposed suggestions for a merger of the two major parties. However, the Matabeleland crisis presented the government with the opportunity to crush its only viable opponent militarily and to reap the rewards politically. This resulted in Nkomo's reluctant accession to a Unity Accord between ZANU-PF and ZAPU in late 1987, the former's domination indicated by retention of its own name for the united party. Although talks were facilitated by the release of ZAPU detainees, the room for manoeuvre available to Nkomo had been severely restricted by widespread bans on ZAPU meetings, raids on ZAPU offices, and the party's eventual banning altogether in September 1987. The signing of the Unity Accord increased ZANU-PF's majority in parliament to 99 out of 100. It was only then that the atrocities in Matebeleland were brought to an end.[31]

Further constitutional amendments prior to the March 1990 general elections created an executive presidency, to be popularly elected, and the abolition of the Senate, creating a unicameral legislature which, expanded to 150, was to include 30 members effectively appointed by the President (8 provincial governors, 12 chiefs, and 12 to represent special interest groups).

[30] Ibid., 181. See also Ibbo Mandaza and Lloyd Sachikonye (eds) (1991), *The One Party State and Democracy: The Zimbabwe Debate*, Harare: SAPES Trust, for different perspectives.

[31] Muzondidye, op. cit., 179–80.

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Ironically, although the use of violence and ZANU's discourse of unity had been used to subordinate ZAPU, the merger of the two parties undermined the ruling party's claim to political hegemony. The government had already used its powers to curb protest from civil society and trade unions, yet this proved insufficient to quell growing disquiet about various government policies and increasing evidence of corruption. Furthermore, the effective imposition of a one-party state by removing an external enemy turned ZANU-PF in upon itself, providing space for expression of internal dissidence. It was not merely that the ZANU-PF hierarchy had difficulty in asserting its authority at lower levels of the party, nor that ex-ZAPU figures openly contested Marxism-Leninism, but that key figures, such as Edgar Tekere, the party's Secretary-General, voiced a wider concern about corruption and about violations of a Leadership Code which had been introduced in 1987. This led to his expulsion and to his subsequent formation of the Zimbabwe Unity Movement (ZUM). The new party failed dismally in the general election that followed (obtaining only two seats), but its campaigning – along with that of a dozen former ruling party members who had stood as independents after having been denied nomination as ZANU-PF election candidates – served to block the agenda for a one-party state.[32] Overall, in 1990 ZANU-PF massively increased its majority over its opponents and attained a sweeping victory (117 out of the 120 elective seats) in the National Assembly election, with Mugabe overwhelming Tekere in the concurrent presidential election:

Table 5.4 Zimbabwe National Assembly Elections 1985 and 1990[33]

Party/Contestant	Valid Votes	% Valid Votes	Elected Seats
	1985 Elections		
ZANU-PF	2,233,320	77.19	64
PF-ZAPU	558,771	19.31	15
Others	101,194	3.5	1
Total	2,893,285		80
	1990 Assembly Elections		
ZANU-PF	1,690,071	80.55	117
ZUM	369,031	17.59	2
Others	29,115	1.85	2
Total	2,088,217		120
	1990 Presidential Election		
Robert Mugabe (ZANU-PF)	2,026,976	83.04	
Edgar Tekere (ZUM)	413,840	16.95	
Total	2,440,816		

[32] Ibid., 181.

[33] Tom Lodge, Denis Kadima and David Pottie (eds) (2002), *Compendium of Elections in Southern Africa*, Johannesburg: Electoral Institute of Southern Africa, 429–70.

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Despite ZANU-PF's overwhelming victory, the low turnout – notably in urban constituencies – pointed to growing disaffection from the ruling party and popular concern with its management of the economy, which after 1991 became subject to the constraints of the IMF-directed ESAP. This provided the background to mounting protest, spearheaded by ZCTU and the decision by eight opposition parties, including ZUM, to boycott the 1995 election in which ZANU-PF won all but 2 of the 120 elective seats. In the presidential election, Mugabe similarly trounced his challengers, securing 92.7 per cent of the vote against Muzorewa's 4.2 per cent and Ndabaningi Sithole's 2.4 per cent. ZANU-PF was thus in total control of the machinery of state – but its hold over society was slipping.

The 2000 referendum and its aftermath: ZANU-PF's negation of electoral democracy

Zimbabwe had seen significant gains during its first decade of independence, yet many of these were to prove unsustainable. Little had been done to alter the colonial economy; much-needed land reform had been constrained by limited donor funding and lack of government application; there was a low rate of foreign investment; and successive structural adjustment programmes had resulted in cutbacks in social services, low growth rates, and a failure to make inroads into poverty. Combined with recurrent droughts, all this contributed to the government's growing unpopularity. Strikes became more frequent and revelations of corruption eroded its standing, which was further undermined by Zimbabwe's involvement in war in the DRC.

The ZCTU's increasingly critical stance of government policy had led to debate within the trade union movement about whether it should explicitly enter the political arena. Its awareness of the commonality of the struggles of workers with those of wider social communities led to its centrality in the formation of a constitutional reform movement, the National Constituent Assembly (NCA), on 31 January 1998.[34] Alongside growing disillusionment with the constitution, the NCA was tapping into concern about multiple amendments which had strengthened the grip of ZANU-PF on the state and concentrated power in the hands of the President.[35]

The NCA provoked a national discussion about citizenship, government accountability, and democracy which culminated in the calling of a National Working People's Convention in February 1999 at which the decision was taken to form a political party. This resulted in the launch of the MDC the following September. Morgan Tsvangirai, hitherto General Secretary of the ZCTU, became President of the new party, with other senior posts assumed by labour leaders and figures from civil society, including a few from the shrinking white community who favoured involvement in issues around economic liberalization, constitutionalism, and democracy. Thereafter, the campaign for constitutional reform merged with idea of a change in government.

[34] Brian Raftopoulos (2009), 'The crisis in Zimbabwe', in Raftopoulos and Mlambo (eds), op. cit., 208–09.

[35] Lovemore Matombo and Lloyd Sachikonye (2010), 'The labour movement and democratization in Zimbabwe', in Bjorn Beckman, Sakhela Buhlungu and Lloyd Sachikonye (eds), *Trade Unions and Party Politics: Labour Movements in Africa*, Cape Town: HSRC Press, 109–30.

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The government responded to the NCA by establishing its own Constitutional Commission. This undertook countrywide consultations, but its draft constitution, while providing for the acquisition of land without compensation unless this came from the UK, ignored widespread public sentiment in favour of Mugabe's retiring and the introduction of a limit to the number of terms which could be served by a President. This draft was put to a constitutional referendum in February 2000. Given its well-funded campaign and the strong backing of the media, state administration, and ZANU-PF, the government was confident of winning. However, to its consternation, the coalition of interests embodied in the NCA and MDC led to the proposed constitution being rejected by a 54 per cent majority of the 1.3 million (mainly urban) Zimbabweans who voted. The government had little alternative but to accept the result, but ZANU-PF ascribed the rejection of the proposed constitution to a conspiracy between the black urban middle class, white farmers, and the government's external enemies, and saw an opportunity to fight the forthcoming elections as if they were a re-run of the war for liberation.[36]

The referendum defeat signalled to ZANU-PF that it could lose the general elections of 2000 and the presidential election of 2002. This became a motivating factor in the government's launch of its fast track land reform. This constituted both a potentially revolutionary rupture and a major shift in power relations within the ruling party, as Mugabe consolidated his personal control. Critical was his forging an alliance with the War Veterans' Association (WVA).[37] Formed in the early 1990s in response to the slow pace of demobilization and land resettlement, the WVA – probably with support from elements in the army – had in 1997 invaded State House and forced Mugabe to concede pensions to war veterans that the government could not afford and to promise speedier land reform. Despite the massively deleterious impact upon public finances, the government now gave concerted support to a wave of land invasions which were spearheaded by the WVA but also backed by ZANU-PF youth and popular elements drawn from both communal and urban areas. Henceforth, the government used the land issue to drum up political support, justifying forced seizure of white farms and using the allocation of seized lands as a means of patronage and a tool of retribution against white farmers deemed to be supporters of the opposition. Henceforth, ZANU-PF resorted to war rhetoric to maintain power, depicting land seizures as the 'third Chimurenga'.[38]

The MDC emerged as the major force of opposition. The election for the National Assembly held on 24–25 June 2000 constituted a major turning point in Zimbabwe's postcolonial history. For the first time, a generation born immediately after independence was able to vote, and ZANU-PF was faced by a viable, nationwide alternative. Confronted by the prospect of defeat, the government launched a campaign of systematic violence, intimidation and even murder against its opponents, spearheaded by the WVA and ZANU-PF youth.[39] In the cautiously chosen words of the Commonwealth Observer team, this 'impaired

[36] Raftopoulos, op. cit., 207–10; Matombo and Sachikonye, op. cit., 114–16.
[37] Raftopoulos, op. cit., 211.
[38] David Moore (2001), 'Is the land the economy and the economy the land? Primitive accumulation in Zimbabwe', *Journal of Contemporary African Studies*, 19: 2, 253–66.
[39] Amnesty International (2000), *Zimbabwe: Terror Tactics in the Run up to Parliamentary Elections, June 2000*, London: Amnesty International.

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the freedom of choice of the electorate'.[40] Even so, the MDC delivered a major shock to the ruling party, securing 57 seats to ZANU-PF's 62 in an increased vote (Table 5.5 below).

The MDC's sudden rise sounded a loud warning that Mugabe himself confronted possible defeat in the presidential elections to be held in 2002. The government's response was ruthless, systematic exploitation of its control over the state, the electoral machinery, and the means of violence to fundamentally disadvantage the opposition and to intimidate its supporters. Yet even in these highly dangerous circumstances, Tsvangirai performed remarkably well, taking 42.1 per cent of the vote compared with 56.06 per cent for Mugabe. However, government repression exacted its toll over the longer term so that in the 2005 National Assembly elections, the MDC's haul of seats (41) was significantly reduced.

Table 5.5 Zimbabwe National Assembly Elections 2000 and 2005[41]

Party/Contestant	Valid Votes	% Valid Votes	Seats
	2000 Assembly Elections		
ZANU-PF	1,205,844	48.10	62
MDC	1,171,167	46.72	57
Others	129,962	5.18	1
Total	2,506,973		120
	2002 Presidential Elections		
Robert Mugabe	1,681,212	56.06	
Morgan Tsvangirai	1,262,403	42.10	
Others	55,145	1.85	
Total	2,998,760		
	2005 Assembly Elections		
ZANU-PF	1,569,867	59.59	78
MDC	1,041,292	39.52	41
Others	23,486	0.89	1
Total	2,634,645		120

ZANU-PF's winning of 78 seats, together with some 30 presidential nominees, chiefs, and provincial governors, handed it the two-thirds majority which enabled it to amend the constitution, a power it immediately utilized to reintroduce the Senate, which it had abolished in 1989. Out of a total of 66 Senators, 50 were to be directly elected, 5 from each province, to sit alongside 6 nominated by the President and 10 held by traditional chiefs.

The first Senate elections were held on 26 November 2005, but not surprisingly, the voter turnout (19.48 per cent) was the lowest in the country's post-independence history, and MDC took just 21.18 per cent of the vote in a contest in which no real power was at stake. However, the wider significance of the

[40] Commonwealth Secretariat (2002), *Zimbabwe Presidential Election 9–11 March 2002: Report of the Commonwealth Observer Group*, London: Commonwealth Secretariat, 32.

[41] Susan Booysen and Lucient Toulou (2009), 'Zimbabwe', in Denis Kadima and Susan Booysen (eds), *Compendium of Elections in Southern Africa 1989–2009: 20 Years of Multiparty Democracy*, Johannesburg: Electoral Institute of Southern Africa, 629–58.

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election was that it caused a split within the MDC, the larger element under Tsvangirai having called for a boycott, the smaller dissident faction, led by Arthur Mutambara, favouring participation. Differences between the two factions relating to issues of strategy and internal democracy resulted in the split becoming entrenched, with the party divided into factions known as MDC-T and MDC-M.

ZANU-PF served as both the architect and beneficiary of these years of electoral authoritarianism even while the country plunged into a desperate crisis. Land seizures and calamitous drops in both agricultural and manufacturing production resulted in widespread hunger and mass exodus of Zimbabweans to neighbouring countries, notably South Africa. Furthermore, as the crisis deepened, the government resorted to printing money, resulting in a spectacular hyperinflation which destroyed the value of savings and pensions and led to a thriving black market, gains on which provided for a good living for those members of the elite with access to state-controlled foreign currency.

Nonetheless, although ZANU-PF now presided over a ruined economy and its resort to violence was an affront to democracy, regional leaders were reluctant to denounce the various elections as fraudulent, for key figures amongst them, notably Nujoma, remained strongly supportive of the Zimbabwean President as a champion of anti-imperialism and liberation.[42] However, most were eager to find a resolution to a wide-ranging crisis which affected the region negatively.

A SADC summit at the end of March 2007 mandated South African President Mbeki to facilitate negotiations aimed at resolving the crisis in Zimbabwe, the objective being to establish conditions for the holding of free and fair elections in 2008. Later in the year, agreement appeared to have been reached regarding the drawing up a new constitution and key changes to laws governing security, the media, and elections in exchange for the MDC conceding a constitutional amendment which provided for harmonized presidential, senatorial, House of Assembly, and local elections. Apart from reducing the tenure of the President from six to five years, the resulting amendment saw the House of Assembly expanded from 120 to 210 elective seats and the Senate from 66 to 93 seats, 60 of which would be elective. A principal motivation, apparently, was to dilute the MDC's standing in both houses (notably by increasing the number of seats in rural areas traditionally controlled by ZANU-PF). However, ZANU-PF's unwillingness to relax political conditions contributed to a deadlock in the negotiations over the time frame and means for implementing reforms, the manner and enactment of a new constitution, and the date for the next election.[43]

The MDC had been hoping for Mbeki to persuade ZANU-PF to agree to an amended constitution before announcing an election. However, Mugabe unilaterally proclaimed 29 March 2008 as the date of the harmonized elections, arguing that a new constitution could only be introduced via a referendum.

[42] Nujoma obtained the nickname 'Mugabe-lite' to characterize his rhetoric within regional politics in defence of his ally. See Henning Melber (2006), '"Presidential indispensibility" in Namibia', in Roger Southall and Henning Melber (eds), *Legacies of Power: Leadership Change and Former Presidents in African Politics*, Cape Town: HSRC Press; Uppsala: Nordic Africa Institute, 112–13 (note 8).

[43] Raftopoulos, op. cit., 227–31.

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The elections were therefore held under terms prescribed by the existing constitution, although concessions made to SADC meant that they took place under conditions where, unlike in previous elections, freedoms of assembly, association, and speech could be generally exercised 'without undue hindrance', albeit against the background of violence meted out to the MDC in 2007. In contrast, however, 'the electoral process was severely wanting in respect of fairness, as most of the critical aspects of the process lacked transparency'.[44] Indeed, delay by the Zimbabwe Electoral Commission (ZEC) in releasing the results, alongside a lack of transparency in the counting process, fuelled widespread rumours of vote rigging and military intervention. Furthermore, there was explicit backing to ZANU-PF given by the security forces, with statements made by high-ranking officers to the effect that they would not accept a pro-MDC election result.

ZANU-PF proceeded to lose its majority in the National Assembly, with the MDC-T taking some 99 seats to ZANU-PF's 97, and the MDC-M taking a further 10. (As can be seen from Table 5.6 on page 117, the results announced by the ZEC were proclaimed as manipulated in favour of ZANU-PF by civil society election monitors who provided their own version of the parliamentary vote. This was calculated according to results announced at polling station level which were sent to a counting centre in South Africa by mobile phone). Even more dramatic was Tsvangirai's triumph in the presidential poll, taking an announced 47.9 per cent of the votes cast compared to Mugabe's 43.2 per cent (there being strong grounds for believing that he was denied a majority only by political intervention in the counting process).

Whilst this was a convincing win for Tsvangirai, it did not take him beyond the 50 per cent-plus threshold required to prevent a run-off with Mugabe.

This was subsequently scheduled for 27 June 2008. However, the period following the March elections saw ZANU-PF unleash a massive campaign of violence, war rhetoric, and hate speech against the opposition. This resulted in so many murders and injuries to his supporters, along with extensive displacement of people and destruction of homes, that Tsvangirai, who was arrested a number of times during the campaign, eventually opted to pull out, claiming that a free and fair election was impossible in a climate of state-sponsored violence. However, the ZEC announced on 25 June that his withdrawal had occurred too late, and that the contest would continue. With MDC supporters cowed, Mugabe won some 90.22 per cent of the votes cast, his engorged victory ascribed to the extreme violence which deprived voters of the freedom to abstain. Indeed, the MDC advised its supporters to vote if this would help save their lives.[45] Three by-elections for House of Assembly seats not held in March owing to the deaths of candidates were also held, narrowing the gap between ZAANU-PF and MDC to just one seat.

The overall outcome of the 2008 elections was that ZANU-PF had bludgeoned an effective draw. The MDC-T had gained a small edge over ZANU-PF in the Assembly, yet could only secure a majority along party lines in alliance with the Mutambara faction and ultimately, Mugabe had retained the presidency. Meanwhile, although the MDC-T (24) and MDC-M (6) tied with ZANU-PF (30)

[44] Electoral Institute of Southern Africa (EISA) (2008), *Zimbabwe: The Harmonised Elections of 29 March 2008,* EISA Election Observer Mission Report No. 28, Johannesburg: EISA, 9.

[45] Ibid., 78.

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Table 5.6 Zimbabwe National Assembly and Presidential Elections 2008[46]

Party/Contestant	Votes	% Votes	Seats
MDC-T	1,021,370*	45.2	99 (+1)**
	1,038,617***	2.8	
ZANU-PF	1,057,841*	46.8	97 (+2)*
	1,111,625***	45.8	
MDC-M	152,705*	6.8	10
	206,868***	8.5	
Others	27,955*	1.2	1
	67,698***	2.8	
Total	2,259,871*		207(210)
Presidential Election First Round			
Morgan Tsvangirai	1,195,562	47.87	
Robert Mugabe	1,079,730	43.24	
2 Others	221,973	8.89	
Total	2,497,265		
Presidential Election Run Off			
Robert Mugabe	2,150,269	90.22	
Morgan Tsvangirai	233,000	9.78	
Total	2,383,269		

* Totals as calculated by civil society formations
** Including seats won in 3 by-elections contested after 29 March 2008
*** ZEC official results, widely regarded as manipulated in favour of ZANU-PF. Zimbabwe Election 2008, www.Sokwanele.com/election2008

in the elections for the Senate, the President's prerogative of appointments to that body gave ZANU-PF control over the upper house. It was in this context that Mbeki was enabled to mediate the power-sharing agreement of September 2009 whereby Mugabe and ZANU-PF conceded to share power with the MDC. Tsvangirai became Prime Minister and his party took control of key finance portfolios which rapidly yielded significant gains for the economy. By abolishing the Zimbabwean dollar in favour of foreign currencies, the MDC abolished the cause of the hyperinflation. Fatefully, however, Mugabe retained presidential power and ZANU-PF control of the military, police, and means of coercion.

NLMs as electoral machines

Political party organizations in modern democracies have been largely constructed around the need to win elections. The extension of the franchise to incorporate all men and women of voting age forced political parties to transform from elite to mass organizations capable of contesting elections. Thus even conservative parties, largely dedicated to the interests of land and property, found they needed to expand their social base to incorporate the middle and working classes if they were to compete with socialist movements. The nature

[46] Booysen and Toulou, op. cit., 652.

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of the party, wrote Robert Michels, is to 'organize the masses upon the vastest scale imaginable':

> 'Party organization' signifies the aspiration for the greatest number of members. 'Parliamentarism' signifies the aspiration for the greatest number of votes. The principal fields of party activity are electoral agitation and direct agitation to secure new members. What, in fact, is the modern political party? It is the methodical organization of the electoral masses.[47]

When confronted by the need to move from the battlefield to the arena of electoral politics, NLMs have had to take on key characteristics of the classical political party. Without electoral organization during their transitional elections, they would have been unable to secure control of the state; without electoral organization, they would be unable to maintain it.

Elections in southern Africa are supposedly governed by SADC principles whereby an election will only be deemed free and fair if there is: full participation of citizens in the political process; freedom of association and political tolerance; elections are held at regular intervals as provided by national constitutions; equal opportunity for all political parties to access the media, and equal opportunity for individuals to vote and be voted for. Further, the judiciary and electoral management institutions are to be neutral between parties; and there must be acceptance of and respect for election results, alongside a right to challenge them according to agreed procedures. It would follow from what has been set out above that while elections in Namibia and South Africa appear to have broadly conformed to these principles, those in Zimbabwe have not. So a number of questions follow. Why is it that SWAPO and the ANC have been able to become 'dominant parties' while ZANU-PF has not? How do they compare as 'electoral machines' and how have their capacities been augmented by their possession of state power? Finally, how do their common characteristics as liberation movements affect their electoral behaviour and what are the implications for democracy?

Level playing fields? NLMs and electoral institutions

These political transitions dictated that the bodies administering the transitional elections were placed beyond the control of any political parties. In both Namibia and Zimbabwe, the transitional elections were, in essence, run by the existing electoral authorities established by the former minority regimes, yet under close supervision: by the UN in the case of Namibia, by the British in Zimbabwe. Inevitably this led to suspicions on the part of the liberation movements that the electoral processes worked against them, but while there were instances where neutrality was infringed, there was no convincing evidence of serious bias and resultant impact upon the outcome. Indeed, an attempt by General Peter Walls, the Rhodesian army commander, to have the transitional election in Zimbabwe nullified on the grounds of alleged intimidation of voters by ZANU-PF was dismissed out of hand by the British authorities.[48] For all that

[47] Robert Michels (1912), *Political Parties,* New York: Dover Books, 2nd edn. 1959, 367.

[48] According to Moorcroft (op. cit., 86), Governor Soames responded to General Walls's request to ban ZANU-PF activity in certain areas because of the large presence of ZANLA guerrillas with

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both Britain and South Africa hoped for conservative outcomes in the Zimbabwean and Namibian elections respectively, their first priority was to nail down international recognition of the political settlements and get out. In South Africa, in contrast, the interim constitution provided for the establishment of a completely new body, the IEC, to run the first democratic election. Composed of five commissioners, none of whom could hold high political office and one of whom had to be a judge, and shielded from arbitrary dismissal, the IEC was responsible for supervising a Chief Executive Officer who headed the actual electoral administration. To be sure, it is now accepted that numerous administrative mistakes were made by the electoral authorities in 1994, and that the KwaZulu-Natal provincial election result was 'negotiated' to secure an IFP victory and political stability. Nonetheless, given that the political climate in the run-up to the election was scarcely propitious for running a free and fair election (with high levels of political violence and IFP recalcitrance), the IEC's achievement was remarkable, and there were no major complaints about its neutrality.[49]

The temptation to structure electoral institutions to facilitate successive ruling party victories was obvious. However, the nature of the settlements in Namibia and South Africa was such as to ensure that the neutrality of electoral institutions was maintained.

The Electoral Commission of Namibia was established in 1992 to supervise elections at all the different levels (national, regional, and local). From 1992 until 2000, the ECN was administered as part of the Prime Minister's office, but after criticism that this might affect its independence, it was established in its own right and given its own budget. Furthermore, reforms in the late 1990s rendered the selection of Electoral Commissioners more transparent. They were no longer to be appointed directly by the President but were to respond to open advertisements, prior to appearing before a selection committee consisting of a member of the Supreme or High Court appointed by the Chief Justice, a lawyer nominated by the Law Society, and staff member of the Office of the Ombudsman. In turn, this committee would put forward eight candidates to the President, who would then select five. Similarly, the Director of Elections, the Chief Executive of the Commission, was to be appointed after the Commissioners had interviewed five candidates and recommended two to the President, to make the final choice.[50]

The body which ran the 1994 election in South Africa was temporary, and was subsequently replaced by a permanent organization of the same name. The Electoral Act of 1996 established the new IEC with the responsibilities of strengthening constitutional democracy and promoting democratic electoral processes. Apart from administering elections, it was to compile a voters' roll, demarcate wards for local government (for which elections were to be conducted

the following reflection: 'You must remember this is Africa. It isn't Puddleton-on-the-Marsh, and they behave differently here. They think nothing of sticking poles up each other's whatnot, and doing filthy beastly things to each other. It does happen, I'm afraid. It's a very wild thing an (African) election.'

[49] Claude Kabemba (2005), 'Electoral administration: Achievements and continuing challenges', in Jessica Piombo and Lia Nijzink (eds), *Electoral Politics in South Africa: Assessing the First Democratic Decade*, Cape Town: HSRC Press, 87–105.

[50] Hopwood, op. cit., 36.

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on a mixed member basis), review electoral legislation, and conduct voter education. There were again to be five commissioners, one of whom was to be a judge. The commissioners were to be nominated by an all-party committee of the National Assembly charged with considering eight candidates, none of whom should have a high political profile, chosen by a panel of the President of the Constitutional Court, and composed of nominees of the Human Rights and Gender Commissions, and the office of the Public Protector. Their recommendations were to be assessed and approved by the National Assembly, and appointees were to serve for up to seven years. In practice, the IEC was to operate through a permanent staff (originally around 250, latterly 300 plus), and appoint temporary staff (as many as 160,000 for the 1999 election) to assist with elections. The majority of these have tended to be teachers and municipal employees. From the 2004 elections on, municipal electoral officers have also recruited volunteers to provide assistance at the nearly 17,000 voting stations across the country.[51]

The careful arrangements put in place have shielded the electoral institutions in both Namibia and South Africa from major controversy. To be sure, the large majorities which both ruling parties enjoy in their respective Assemblies have offered a guarantee that those appointed to head the Commissions will be to their liking, yet there has been no substantial suggestion that the electoral institutions have been politically subverted. There have been regular critiques of their competence regarding their capacity for registering voters timeously and efficiently, yet there has been no substantive suggestion that they have systematically disadvantaged the registration of particular categories of voters. Inevitably, there have been complaints of bias by IEC and ECN staff made by opposition parties at election times,[52] and it is not unlikely, given the authority of municipal electoral officers in South Africa to appoint local staff, that selection will reflect local political preferences. However, given the PR national list system, it is unlikely that local biases will accumulate to a high enough level to affect election outcomes significantly, although this may happen at ward level in local elections. Perhaps this is one reason why the South African IEC has consistently aligned itself with ANC rejections of any call to move from PR to a mixed electoral system for national elections, for there is widespread evidence that in African countries whose elections use a constituency-based system, numerous results end up being referred by unsuccessful candidates for adjudication by the courts.

In contrast to the carefully protected neutrality of the electoral institutions in Namibia and South Africa, those in Zimbabwe have become not merely progressively politicized, but militarized as well. Reference has already been made to how the electoral institutions were becoming subject to ZANU-PF influence by as early as the 1990 election. This has become far more explicit since from the time of ZANU-PF's defeat in the constitutional referendum.

Before 2004, electoral management in Zimbabwe was conducted by four bodies: the Electoral Supervisory Commission (ESC); the Registrar-General (RG);

[51] Susan Booysen and Grant Masterson (2009), 'South Africa', in Kadima and Booysen (eds), op. cit., 387–460.

[52] EISA (2009), *Namibia: Presidential and National Assembly Elections 27 and 28 November 2009*, Election Observer Mission Report No. 34. Johannesburg: EISA, 56 (note 12).

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the Election Directorate (ED); and the Delimitation Commission (DC). Members of all four organizations were presidential or government appointees, and as such lacked independence from the state.

Even in the most propitious circumstances, the ambiguity of roles allotted to these bodies would have been a recipe for confusion; in the hands of ZANU-PF, it contributed directly to a lack of transparency. The two most important structures were the ESC and the RG. The former's ascribed role was to supervise registration, overview the elections themselves and consider proposed changes to electoral legislation, yet to do this, it needed to be able to access reports on registration and other electoral matters from the RG. Equally, in terms of the law, the office of the RG – the *de facto* body actually running the electoral process – was not obliged to pass any information to the ESC and on key occasions chose not to do so. Thus in the 2002 Assembly election, the RG refused to provide information to the ESC on the number of ballot books printed, claiming the information was classified. Furthermore, during the presidential election of that year, the RG not only failed to provide the ESC with the election calendar, but again, refused to pass on the number of ballot papers printed, failed to inform the ESC of the number of eligible voters by constituency and province until polling day, and also of the number of the people on the supplementary voters' roll. In short, it would have been very difficult for the ESC to do its job properly even if it had wanted to. Even so, for all its squabbles with the office of the RG, the Commission, which was supposedly non-partisan, was widely regarded as having little autonomy from the ruling party. Not least of its problems in this regard was that its funding was provided by the Ministry of Justice which had the further right of deciding how its funds might be used.

A decision was taken in 2000 to weaken the ESC in favour of the RG.[53] The latter had not only been in that position for decades but, allegedly, had an 'uncompromising' faith in the ruling party. His office was assisted by the Election Directorate, which supposedly was nothing more than a support structure to ensure that resources and logistics were in place to conduct elections, as the RG did not have the power to command them. Inevitably, this led to a growth in the role of the ED, which from 2000 was empowered to accredit election observers on the recommendation of the Ministry of Foreign Affairs. Finally, apart from the dubious role played by the DC (discussed below), enormous powers regarding the electoral process were vested in the executive in terms of Section 158(2)(b) of the Election Act which empowered the President and the Minister of Justice to issue statutory regulations regarding the conduct of elections, and in terms of the Presidential Powers (Temporary Measures) Act of 1986, also gave the President powers to affect electoral competition and participation.

The near loss of the 2000 Assembly and 2002 presidential elections prompted the government to reform the electoral institutions in such a way as to enable it to stage 'credible, but heavily manipulated' parliamentary elections in 2005.[54] At the opening of parliament in July 2004, Mugabe announced elec-

[53] Claude Kabemba (2004), 'An assessment of Zimbabwe's electoral administration', in Wole Olaleye (ed.), *Negotiating the Impasse: Challenges and Prospects for Democratization in Zimbabwe*, Johannesburg: EISA Research Report No. 9, 9–27.

[54] Peter Kagwanja (2005), *When the Locusts Ate: Zimbabwe's March 2005 Elections*, Electoral Institute for Southern Africa Occasional Paper No. 32, 2.

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toral reforms and later endorsed electoral principles adopted by SADC at their Mauritius summit in August of that year. The public debate that followed argued for a reform of political conditions which constrained free and fair elections (such as a host of repressive laws which undermined fundamental freedoms), but the government restricted its reforms to much narrower electoral concerns. On 17 January 2005, Mugabe signed into law the Zimbabwe Election Commission Bill and the Electoral Bill.

The first of these appointed a Zimbabwe Electoral Commission as the sole electoral management body and abolished the ED, DC, and ESC, although the RG continued to be responsible for registration, supposedly under the ZEC's supervision. The latter Act introduced polling day changes, such as requiring polling to take place on a single day, the counting of votes at polling stations, and introducing translucent polling boxes, whilst also introducing an Electoral Court to hear election petitions. However, for all that these changes received glowing praise from SADC, they contributed to ZANU-PF's ability to control the 2005 election. On the one hand, the Electoral Act, whilst introducing changes allowing for a 'clean' election day, failed to address issues of the wider political environment which impinged on the fairness of voting before polling. On the other, whereas in practice the ZEC lacked the capacity to supervise the RG, its composition was such as to shore up rather than contain Mugabe's system of patronage. After consultation with the Judicial Service Commission, on 21 January 2005 he appointed Justice George Chiweshe, a High Court judge, as chairperson, but by this time, the judiciary had already become packed with ZANU-PF sympathizers. Furthermore, although the other four commissioners were appointed from a list of seven names submitted to the President by a bipartisan parliamentary committee, a provision of the Act provided for state employees (inclusive of the defence, police, and prison forces) to be seconded to the Commission during elections.[55]

The electoral institutions had already become progressively militarized. Chiweshe himself was a former judge advocate responsible for military tribunals in the army, and a veteran of the liberation war, who had been appointed to head the Delimitations Commission charged with drawing up new constituencies for the 2005 elections. From 2000 to 2003, the chairperson of the ESC was Mr Sobusa Gula-Ndebele, a lawyer and also a retired army colonel. During his tenure, the Chief Executive of the Commission was Brigadier Douglas Nyikayaramba, who after his stint at the body returned to command the 2nd Infantry Brigade.[56]

There are, in addition, a whole set of other provisions of the law, often buried in small print, which have systematically skewed elections in favour of ZANU-PF.[57] However, two final aspects stand out. The first is the disenfranchisement of voters assumed to be MDC supporters; the second is the distortion of the delimitation process to favour ZANU-PF.

[55] Ibid., 5.

[56] Crisis in Zimbabwe Coalition (2005), *Things Fall Apart: The 2005 Parliamentary Election: Prospects of True Democracy in Zimbabwe*, Harare: Crisis in Zimbabwe Coalition.

[57] See notably the detailed chapters on 'The Subversion of the electoral process' in Derek Matyszak (2010), *Law, Politics and Zimbabwe's 'Unity' Government*, Harare: Konrad Adenauer Stiftung in association with the Research and Advocacy Unit.

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The registration of voters, undertaken by the office of the RG, has long been mired in controversy. Supposedly, registration of voters is done on a continuous basis, meaning that voters' rolls are updated provided that people register as voters, register deaths of deceased relatives, or moves. In practice, this scarcely works for urban residents, let alone rural ones. There are also registration campaigns, during which people are supposed to produce required documentation, such as their national identity card or passport to register.[58] But prior to the 2002 presidential election, the RG declined to reveal how many people had registered, and there were complaints from opposition parties that they were not allowed to inspect the voters' roll. Furthermore, there were a series of measures that curtailed the right to vote.

High up on the list was the Citizenship of Zimbabwe Amendment Act of 2001 which outlawed dual citizenship and compelled millions of naturalized Zimbabweans to reapply for citizenship or lose it. Children born in Zimbabwe of foreign parents were also affected and needed to renounce their parents' citizenship to qualify as citizens of Zimbabwe. However, the most affected category were families of migrants from Malawi, Mozambique, and Zambia, many of whom had been resident in Zimbabwe for years. The same applied to remaining whites, many of whom were seen as opposition supporters.[59] Similarly, the Electoral Act (Modification) Notice 2002, introduced by Mugabe, restricted the right to vote only to those granted permanent residence after 31 December 1985 – another measure directed at whites and migrants deemed to favour the MDC. Critically, too, the Notice restricted postal voting to three categories of people: those belonging to a disciplined force (the defence, police, and prison services) and election officials who could not be in their constituencies on polling day; Zimbabwean government officials outside the country; and spouses of the people in these two groupings.[60] The failure of a challenge to this provision by the Diaspora Vote Action Group in court meant an effective block from voting on the estimated 3.5 million Zimbabwean exiles – the overwhelming majority of whom were reckoned to be MDC supporters.[61]

Further stringent requirements introduced in 2005, such as the provision of certain documents, led to the disenfranchisement of thousands of people in poor urban areas, while those residing in rural areas (ZANU-PF's principal stronghold) needed only to have their village head or farm employer vouch for them. Thus although the number of registered voters increased from just over 5 million in 2000 to 5.9 million in 2008, since then there has been a very low rate of registration of youth who have turned eighteen from 2000 onwards. The electoral roll has been shown to have numerous anomalies, not least the inclusion of the names of those who have died.[62] Although widely flawed, the election rolls are used by the DC to determine constituency boundaries and the number of polling stations. There have been constant complaints that the

[58] Kabemba (2004), op. cit., 21.

[59] Amongst them was democracy activist Judith Todd, daughter of Sir Garfield Todd, the liberal Prime Minister between 1953–57 whose overthrow prepared the way for a right-wing shift in white politics and the triumph of the RF in 1962.

[60] Commonwealth Secretariat, op. cit.

[61] Kagwanja, op. cit., 6.

[62] Apocryphal, yet symbolic, is the rumour that Ian Smith, who died in 2007, remains on the voting roll.

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former have favoured ZANU-PF, but the situation certainly worsened after 2002. In 2004, the DC reduced the number of constituencies in urban areas (mostly known for their support for the opposition) whilst increasing the number in rural areas traditionally supporting ZANU-PF. Likewise, for the 2008 parliamentary elections, when the number of constituencies was increased from 120 to 210, areas supportive of ZANU-PF appear to have been disproportionately favoured in the allocation of constituencies. Such bias has been compounded by manipulation of the number of polling stations. In 2002, their number in urban areas was reduced by some 30–40 per cent, while an equivalent increase took place in rural areas. While the ESC justified this as decreasing the distance that rural voters would have to walk, it decreased the opportunity for urban voters to vote.[63]

If in Namibia and South Africa, the independence of electoral institutions has been largely maintained, in Zimbabwe they have increasingly become subordinated to ZANU-PF. We turn now to how this difference has played in the behaviour of NLMs as electoral machines.

SWAPO and the ANC as electoral machines

There are various ways for parties to win elections. First and foremost, they can mobilize support through their election campaigns, rounding these off by seeking to ensure that their supporters vote. These objectives are the essence of electoral contests, although the extent to which parties confront level playing fields varies immensely according to the rules which govern the conduct of electoral campaigns. For instance, there are major differences even amongst established liberal democracies regarding the rules governing campaign funding, broadcasting, and advertising. Yet a second way in which parties can seek to win elections is by systematically disadvantaging the opposition, perhaps even preventing opposition supporters from being able or willing to vote. This latter aspect can go well beyond the structuring of electoral institutions and regulations, as already discussed, to characterize many other aspects of electoral campaigning.

The most striking aspect of their first decades in power has been how SWAPO and the ANC have utilized their status as dominant parties to consolidate their political power. SWAPO, in particular, has continuously emphasised its role as the party of liberation with the slogan of 'SWAPO is the nation and the nation is SWAPO', this translating into vigorous assaults upon the legitimacy and patriotism of the opposition parties it has had to face, especially those formed by its own former members.[64] During the 1999 campaign, the newly formed COD was met with smear campaigns and character assassinations, whilst the appearance of the RDP for the 2009 elections elicited an even more aggressive response, its leaders denounced as agents of imperialism seeking 'regime change'. On occasions this led to the denial of the rights of RDP activists to campaign, with SWAPO effectively declaring its claimed territory as no-go areas

[63] Kabemba (2004), op. cit., 23–25.

[64] Henning Melber (2003), 'Limits to liberation: An introduction to Namibia's post-colonial political culture', in Henning Melber (ed.), *Re-examining Liberation in Namibia: Political Culture since Independence*, Uppsala: Nordic Africa Institute, 9–25.

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for the opposition. There were violent clashes between members of both parties, and for the first time, an election campaign in Namibia turned visibly ugly. Worryingly, this occurred against a background of survey data conducted notably by Afrobarometer, which demonstrated a relatively low level of support for democracy (around 60 per cent across three surveys between 1999 and 2006), with commitment to elections as the best way of selecting leaders declining by nearly 30 per cent between 2002 and 2008.[65]

The ANC's campaigning has generally been far more sophisticated than that of SWAPO, and the party has elaborated a highly efficient electoral machine capable of mobilizing mass support and delivering the vote. It has been strongly guided by research conducted by polling companies which, with the advice of professional public relations firms, has burnished its image and emphasized issues likely to appeal to its supporters, such as job creation, poverty reduction, and the battles against crime and HIV-AIDS. Its strategies and tactics have been tailored to particular situations. In 2004, the party largely eschewed attacks on its competitors, refusing to assign them the status of serious rivals, and contrasting their impotence with its own strength; this was much to the frustration of the DA, which wanted to establish its status as the principal party of opposition. Yet with the formation of COPE following the displacement of Mbeki by Zuma as leader in 2009, the ANC came out with guns blazing, determined to strangle at birth the attraction of COPE for its own less committed supporters, particularly in its homeland of the Eastern Cape.[66]

The ANC has learned fast and well about how to win, and has evolved an impressive electoral organization. Thus for the 2009 campaign, the ANC established a national campaign team at party headquarters, Luthuli House, with parallel teams set up at provincial and regional level. Luthuli House also had a 'mobilization team' designed to put out local fires quickly. It was deployed to the Western Cape, where local ANC elites were engaged in debilitating infighting, and to the North West where the COPE breakaway had created paranoia about infiltrators and spies. The campaign was backed up by the human and organizational resources of its alliance partners, COSATU and the SACP, with the former seconding numerous officials to the parties as full-time organizers. Alongside activists drawn from the ANC Youth League and networks of MK veterans, many were active in organizing the door-to-door canvassing carried out by volunteers, this backed up by a profusion of community hall meetings and mass rallies which ensured that the party's message was carried to virtually every township, suburb, and village in the country. Finally, the methods that ANC campaigners deployed were closely tailored to specific electoral constituencies and target groups, whether these were particular provinces, religious communities, racial minorities, professionals, traditional leaders, black business groups, among others. The ANC was projected as the party for Everyman (and woman).[67]

There have certainly been occasions when opposition parties have been blocked from campaigning freely in so-called ANC areas. The first democratic

[65] Henning Melber (2010), 'Namibia's National Assembly and presidential elections 2009: Did democracy win?' *Journal of Contemporary African Studies*, 28: 2, 203–14.

[66] Tom Lodge (2005), 'The African National Congress: There is no party like it; Ayikho Efana Nayo', in Piombo and Nijzink (eds), op. cit., 109–28; see also Butler, op. cit.

[67] Butler, op. cit.

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election, conducted amidst a virtual civil war in KwaZulu-Natal and right-wing violence on the Witwatersrand, was tense as well as being ultimately triumphant, with as many as 300 people killed in each of the six months leading up to the April 1994 poll. Thousands more were injured or forced from their homes as both the ANC and IFP engaged in 'cleansing' their turf of opposition supporters. Again, in 1999, nearly 300 people died in election-related violence in the five months prior to the poll, most of it again occurring in KwaZulu-Natal. Yet, overall, violence levels have markedly declined, with much-reduced levels of killing and intimidation characterizing both the 2004 and 2009 campaigns, pointing to a lowering of levels of political enmity and hopefully a shift for the better in the nation's political culture.[68]

In both Namibia and South Africa, the ruling parties' campaigns have been assisted by ample funding and use of the media. A detailed examination of party funding will follow in Chapter 10. Suffice it to say here that in both countries there is a system of public financial support which allocates parties state funding proportional to their representation in parliament. This works to the huge advantage of both SWAPO and the ANC. In 2007, for example, the former received 11 times as much state funding as any other party represented in parliament and 3.2 times as much as all the other opposition parties put together.[69] Yet equally important is that in both, there are few restrictions on the right of parties to receive private funding, whether from home or from abroad. In Namibia, parties are legally required to declare their foreign funding, yet few do, whilst in South Africa there is no such regulation at all. The overall effect is that in elections in both countries there is a huge mismatch in funding, with the ruling parties massively ahead of their competitors. Thus Butler estimates that the ANC campaign in 2009 cost between R400 and R500 million, with major sums coming from foreign political parties ranging from the Indian National Congress and the Chinese Communist Party through to the ruling parties of Libya, Angola, and Equatorial Guinea.[70] No such estimates are available for opposition parties, but they were quite unable to compete. Meanwhile, they are also assisted by considerable blurring of state with party funding, with numerous instances of government officials using their official time and access to resources, such as vehicles, to back the ruling party.

Funding is vital to parties for getting their message across, but the campaigns of both SWAPO and the ANC have been assisted by their being parties of government. Notwithstanding rules which ensure free air-time for opposition parties, SWAPO and the ANC have both benefited immensely from arrangements that advantage the larger parties. In 2009, the NBC was explicitly criticized by the SADC Observer team for its pro-SWAPO bias.[71] Similar criticisms have been regularly aimed at the SABC in South Africa by opposition parties, although they have not been reliably sustained by academic analysis of election coverage.[72]

[68] Daniel and Southall, op. cit.
[69] EISA, op. cit.
[70] Butler, op. cit., 74.
[71] *The Namibian*, 2 December 2009.
[72] Gavin Davis (2005), 'Media coverage in Election 2004: Were some parties more equal than others?' in Piombo and Nijzink (eds), op. cit., 231–49.

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Meanwhile, in both countries, the state media is balanced by the privately owned media, this providing for relatively independent coverage of campaigns. However, this does not necessarily translate into support for the opposition: as reported regarding South Africa in 2009, various covert pressures upon media freedom may well have served to inhibit the privately owned media's willingness to call explicitly for an opposition vote.[73] Things have been very different in Zimbabwe.

ZANU-PF as an electoral machine

The fundamental difference between SWAPO and the ANC, as dominant parties, and ZANU-PF as a party which has enforced its domination, has been the latter's uninhibited resort to state power and violence to reverse its loss of majority support. This at one level reflects the substantially different popular bases of the various movements. Although its origins and core support lie amidst the Ovambo, SWAPO has survived as a pan-ethnic movement. Likewise, although Xhosa and Zulu elements have been predominant historically, the ANC has consistently sought to unite all Africans and during latter decades has stressed its non-racial nature. Faced by an ideology which sought to divide blacks along racial and ethnic lines, both SWAPO and ANC have placed great ideological emphasis on their representing the entire nation. In contrast, for all that ZANU-PF claims to embody the nation, its history is one of division, symbolized since 1980 by its breaking the PF to contest the transitional elections independently; its initial treatment of ZAPU as a junior partner in government; its campaign of terror against its rival in Matabeleland and Midlands provinces in the early 1980s; and its enforced incorporation of ZAPU in 1987. For all that it was able to maintain majority support in the 1980s, its hold on power and popular affection had a considerable ethnic dimension, built on historical tensions between Ndebele and Shona. From the late 1990s, the relative fragility of its electoral foundations was to be exposed by its loss of popular support even amongst its traditional base.

Apart from tightening its grip on the electoral institutions, ZANU-PF has maintained itself in power through, first, erecting a panoply of restrictive laws to inhibit opposition; second, clamping down on media freedom; third, appropriating state and other resources whilst restricting them to forces of opposition; fourth, unleashing massive violence upon its adversaries; and fifth, not least, declining to accept adverse outcomes in elections. These various devices have been widely documented in numerous reports on elections and political crisis in Zimbabwe in recent years. What follows is merely a summary.

Restrictive laws

Important democratic gains were made during the first two decades of independence but after ZANU-PF's hold on power was threatened in 2000, these have been steadily been rolled back. Political freedom and civil rights are enshrined in the constitution but the rule of law is only very imperfectly

[73] Jane Duncan (2009), 'Desperately seeking depth: The media and the 2009 elections', in Southall and Daniel (eds), op. cit., 215–31.

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observed. Human rights abuses have become systematic. The press is tightly controlled and the private media constantly harassed. Indeed, by 2003 ZANU-PF had overseen the 'promotion of the political culture of fear and the negation of the democratic ethic'.[74] Illustrating this, in 2008 the Electoral Institute of Southern Africa produced a long list of legislative enactments and constitutional amendments which had shaped an increasingly repressive electoral environment since the early 2000s. These included the Access to Information and Protection of Privacy Act of 2002 (AIPPA) which, *inter alia*, required the accreditation of journalists, criminalizing those practising without a licence; the Public Order and Security Act of 2002 (POSA), passed in the run-up to the 2002 presidential election, which gave extensive powers to the executive to ban public meetings and marches; the Electoral Amendment Act of 2002, which gave the RG the power to alter the voters' roll at any time without directly informing the voters concerned or giving them the right to appeal; and the General Laws Amendment Act of 2002 which was intended to amend the Electoral Act relating to powers of the RG to amend the voters' roll, the eligibility of electoral observers and monitors, and the provision of voter education. When the Supreme Court ruled on 22 February 2002 that this Act was illegal, its key provisions were simply enacted by the promulgation by the Minister of Justice in a statutory instrument on 1 March. In addition, amongst a cumulatively impacting series of other laws, the government put forward a Non-Governmental Organizations Bill which threatened to impose severe controls upon NGOs, already suffering under threats of repression and lack of funding. Workers for foreign NGOs were regularly denied entry and work permits.[75]

Following SADC mediation in 2007, amendments were made to AIPPA which removed the criminalization of journalists operating without a licence, and to POSA, which meant that appeals against the banning of a march were no longer to be decided by the executive authority but by the magistrate's court. For all that these changes somewhat improved the situation, none of them were in place for the harmonized elections of 2008. The continued existence of a battery of heavily restrictive laws severely inhibits not only the opposition but Zimbabwe's already marginalized civil society.

Restrictions on the media

Additional to numerous measures inhibiting freedom of association and organization, there have many others restricting media freedom. Historically, media coverage has systematically favoured ZANU-PF. Jonathan Moyo reported that during the 1990 election, although the ESC was charged with ensuring that all contestants had fair access to the media, ZANU-PF not only used the state broadcaster, the Zimbabwe Broadcasting Corporation (ZBC) to dominate the airwaves, but was in violation of all ethical standards regarding advertising, using slogans that equated voting for ZUM as equivalent to dying: 'Don't commit suicide, vote ZANU-PF'.[76]

At the time alternative media outlets were thin on the ground, with a few

[74] John Makumbe (2003), *Zimbabwe's Turmoil: Problems and Prospects,* Pretoria: Institute for Security Studies.
[75] EISA (2008), op. cit., 16.
[76] Moyo, op. cit., 74–75.

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monthly and weekly magazines of limited circulation. However, during the late 1990s, a more vigorous independent media emerged with major financial assistance from foreign sources and international NGOs. A key development was the appearance of the first-ever viable opposition paper, the *Daily News.* With backing from Australian, British, and South African interests, this was produced under the auspices of a large newspaper group, Associated Newspapers of Zimbabwe, which also published five community newspapers.[77] Mugabe's response was twofold.

The first was violence and intimidation, the bombing of first the offices and then the printing press of the *Daily News* (although, inevitably, the government blamed this on the MDC), as well as the persecution and torture of leading journalists. The *Daily News* folded in 2003, followed by the closure of *The Tribune* in 2003 and *The Weekly Times* in 2004.[78]

The second was a swift resort to legislative provisions aimed at gagging the media, borrowed from the Smith-era Law and Order Maintenance Act. When these were deemed insufficient, the regime replaced the Law and Order Act with POSA (Public Order and Security Act), which included stronger measures for controlling the media. New restrictions on the media were also conjured up via the passage of AIPPA (Access to Information and Protection of Privacy Act). However, for all that the usually supine Supreme Court had ruled unconstitutional a clause in AIPPA that imposed criminal sanctions on any journalist convicted of publishing false information, the restrictions on and intimidation of the opposition media were particularly heavy during the 2002 presidential election campaign.

The architect of the new measures was the same Jonathan Moyo (by this time Minister of Information) who had criticized the clampdown on the media during the 1990 election. His subsequent falling out with Mugabe gave hope for a more relaxed atmosphere, and in the run-up to the 2005 elections, the government published a set of regulations to be followed by all parties regarding access to the electronic media. However, the state-controlled media continued to overwhelmingly favour ZANU-PF, and the intimidation of journalists and the harassment of opposition newspapers continued unabated.[79]

The SADC negotiations which preceded the harmonized elections of 2008 had led to an agreement that independent broadcasters would be able to operate in a more relaxed environment, and that the media were compelled to give equal coverage to all political parties. However, although there was less overt intimidation of the independent media, the state-controlled media remained unashamedly pro-ZANU-PF, providing little or no coverage of the MDC campaign. What it did feature was negative.[80] In short, the media remained 'in chains'.[81]

[77] Shumbana Karume (2004), 'An assessment of the impact of democratic assistance', in Olaleye (ed.), op. cit., 28–45.

[78] Catholic Commission for Justice and Peace in Zimbabwe (CCJP) (2000), *Crisis of Governance: A Report on Political Violence in Zimbabwe, Volume 2*, Harare: CCJP, 96–98; EISA (2008), op. cit., 37–40.

[79] Kagwanja, op. cit., 9.

[80] EISA (2008), op. cit., 37–40.

[81] Kagwanja, op. cit., 9.

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Control of state and other resources

ZANU-PF has claimed the state as its own and has absorbed its powers into its electoral machine. A feature of all campaigns from at least 1990 onwards has been the use of state resources (e. g., buses, army trucks, and other government vehicles) to ferry supporters to mass rallies. In the elections of 2000 and 2002, Mugabe used the land issue to buy support and to invoke memories of liberation struggle. The thrust of ZANU-PF's campaign in both elections was upon land: the promise and actual redistribution of land featured strongly. More sinister was the use of food as an electoral weapon.[82] The land invasions from 2000 were at the base of the serious food shortages which afflicted numerous parts of the country, but they were particularly acute in the opposition strongholds of Masvingo, Midlands, and Bulawayo during the 2005 elections. There were numerous reports of the government punishing MDC supporters by refusing them food aid – much of it provided by international agencies – whilst rewarding ZANU-PF supporters in the same areas with the meagre resources available. Meanwhile, restrictions had been imposed upon food distribution by NGOs, even whilst many of the latter's capacities had been severely undermined by restrictions on their operations. 'Thus food distribution remained in the hands of partisan chiefs in rural areas with all the credible risks of the politicization of food security.'[83]

The EISA (Electoral Institute of Southern Africa) Report on the 2008 elections captured the essence of the ZANU-PF's use of state resources which probably holds good for previous contests. Mugabe himself made multiple donations of buses, motor vehicles, generators, television sets, food aid, and agricultural equipment to communities and organizations across the country, funded, apparently, by the Reserve Bank of Zimbabwe. The handouts took place mostly at high-profile and lavish government occasions, with the participation of cabinet ministers and extensive state media coverage. Police and military staff were continually deployed to bolster images of presidential power.[84]

Deployment of political violence

If there is one feature for which Zimbawean elections since 2000 have become internationally notorious it is the high levels of political violence perpetrated by the government and ruling party upon its opponents. Intimidation and violence has become so central to ZANU-PF campaigning that, for many Zimbabweans, elections have become equated with civil war.

In its review of developments prior to the 2000 parliamentary election, Amnesty International declared:

> There is evidence that the Government of Zimbabwe is either instigating or acquiescing in serious violations of human rights including extra-judicial executions, torture and other cruel, inhuman or degrading treatment or punishment. There

[82] Ibid., 26.
[83] Ibid., 9.
[84] EISA (2008), op. cit., 40.

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> appears to be a deliberate and well-thought out plan of systematic human rights violations with a clear strategy, constituting state-sponsored terror…[85]

It also noted that there was a total lack of accountability for those responsible for violence. This, it proposed, needed to be located against, first, the background of serious violations of human rights which had taken place during the liberation war by both sides but which were covered up by a blanket amnesty; and second, the terror and violence that was inflicted upon Matabeleland by the 5th Brigade in the early 1980s, these atrocities themselves amnestied in 1988. Official violation of key court rulings and threats against the independence of the judiciary had also compounded the problem of impunity.

There were already disturbing instances of violence in the elections preceding those of the early 2000s. Intimidation and violence directed at candidates and supporters of ZUM in 1990 represented a foretaste of what the MDC was to encounter later on.[86] Against the background of the violent seizure of farms by ZANU-PF activists and war veterans, the 2000 parliamentary and 2002 presidential elections were preceded by systematic attacks upon those suspected of sympathizing with the MDC. Numerous civil servants, teachers, local government workers, and police officers viewed as opposing the land invasions or viewed as supporting the MDC were variously threatened, dismissed, beaten, raped or tortured; similar treatment was handed out to many MDC candidates and supporters. Often, attacks were made by large groups of ZANU-PF youths, the so-called 'green bombers', in total disregard of international observer groups, who called for official interventions to stop the violence and to ensure conditions for a free vote with no effect.[87] Although such groups noted that MDC supporters sometimes retaliated, the 'overwhelming preponderance of political violence was perpetrated by ZANU-PF youths and supporters against known or suspected supporters of the MDC'.[88]

The level of violence prior to the 2005 election was considerably less than during the 2000 and 2002 campaigns, this borne out by analyses made by not only the MDC itself but other groups such as the Zimbabwe Human Rights NGO Forum, the Zimbabwe Peace Project, and the Zimbabwe Election Support Network. According to the last mentioned, there was a 'surprising level of political tolerance', a major contributing factor being early and consistent calls for zero tolerance of violence made by the President, party leaders, police chiefs, and security chiefs.[89] Even so, detailed analysis demonstrated, first, that there were still a large number of serious violations (3,783 recorded by the Zimbabwe Peace Project for the period November 2004–March 2005); second, that there was a trend towards more subtle forms of violation replacing overt violence, particularly towards interference with basic freedoms, inclusive of unlawful arrest and detention under POSA; and third, there was a steady rise in viola-

[85] Amnesty International, op. cit., 1.
[86] Moyo, op. cit., 77–78.
[87] Commonwealth Secretariat (2000), *The Parliamentary Elections in Zimbabwe 24–25 June 2000: The Report of the Commonwealth Observer Group,* London: Commonwealth Secretariat; Commonwealth Secretariat (2002), op. cit.
[88] Commonwealth Secretariat (2000), 29.
[89] Tony Reeler and Kuda Chitsike (2005), *Trick or Treat? The Effects of the Pre-Election Climate on the Poll in the 2005 Zimbabwe Parliamentary Elections,* Cape Town: Institute for Democracy in Southern Africa, 27.

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tions as the election approached. Such evidence led Kagwanja to conclude that having for the moment contained the MDC's challenge to Mugabe's incumbency, the decline of violence was 'a political decision by ZANU-PF'.[90] Improved, yet far from violence-free conditions, characterized the 2008 elections, prior to which Mugabe had been forced into negotiations by SADC.

Non-compliance with electoral outcomes

If all else fails, governments that lose elections yet retain the backing of the security forces can stay in power. Significantly, this had been demonstrated prior to Zimbabwe's 2008 elections by events in Kenya, when the results of the peculiarly violent December 2007 election in that country should have seen the exodus of President Kibaki and the replacement of his Party of National Unity by Raila Odinga's Orange Democratic Movement. Instead, Kibaki clung to power, disputed the result, and with the backing of various international players who feared Kenya would collapse into civil war, forced a power-sharing agreement in which he retained the presidency whilst Odinga became Prime Minister. It would be an insult to Mugabe's cunning to suggest that he needed such an example to stage a similar show of imperviousness to electoral defeat in the harmonized elections of 2008, but the precedent was certainly helpful in providing a veneer of legitimacy to the power-sharing agreement eventually negotiated under SADC and other pressures following the elections.[91] Yet there had been clear previous indications of the regime's likely reactions well before the results came in (and were delayed and manipulated). There had been numerous statements by senior figures in the security forces that they would not accept an MDC victory and Tsvangirai as President, while Mugabe himself stated on numerous occasions before the election that power would never be yielded to the opposition.[92] On the day before the elections, he declared that in the event of the MDC winning he would take his war veterans back into the bush.[93] ZANU-PF's disbelief in the connection between the national interest and electoral outcomes had never been made so clear: elections were simply for Zimbabweans to express 'fealty and obeisance to power'.[94]

Dominance, hegemony, and democracy

NLMs' access to state power has depended upon their winning elections and evolving into electoral machines to maintain themselves in office. In Namibia and South Africa, SWAPO and the ANC have secured repeated victories which have confirmed their status as 'dominant parties'. Securing initial victories in the turbulent contexts of transitional elections, their successive triumphs have been achieved in electoral conditions which, although not without flaws, have with justification been regarded as broadly 'free and fair'. Certainly there are

[90] Kagwanja, op. cit., 7

[91] Nic Cheeseman and Tendi Blessing-Miles (2010), 'Power-sharing in comparative perspective: The dynamics of unity government in Kenya and Zimbabwe', *Journal of Modern African Studies*, 48: 2, 203–30.

[92] EISA (2008), op. cit., 41.

[93] Ibid., 42.

[94] Matyszak, op. cit., 46.

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concerns that their dominance has, in one way or another, begun to shape their respective electoral environments to their advantage; and likewise, at times their political activists have resorted to violence and intimidation against electoral opponents. Yet hitherto they have not yet confronted the ultimate test of how they would behave if they were to lose an election and as a consequence be required under their nations' constitutions to stand down from power. Certainly, the ANC has conceded power at the provincial level, notably in the Western Cape following the elections of 2009, but losing power nationally could be another story. Only time will tell what will happen when SWAPO and the ANC are so challenged, and it will be a theme of later chapters that there is an important role for parties of opposition and civil society to keep both of these parties honest. Not surprisingly, there are some observers who fear that, if push comes to shove, there will be many among the ranks of both SWAPO and the ANC who will wish to emulate the example of ZANU-PF by blatantly rigging elections, using concerted state violence, and refusing to accede to the expressed wishes of the people.

Embedded in this latter perspective is the suggestion that the NLMs share the same genes. Parties of dominance, it is implied, are happy enough with democracy whilst they are winning, but will abruptly cast it aside for an enforced hegemony if, as is one day is likely, they lose power. To some considerable extent, SWAPO and the ANC are both partially responsible for such thinking through the extensive support, covert and overt, that they have provided to ZANU-PF since the year 2000, which seems to say that, come what may, the NLMs should stick together.

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